



File No.: EXP202313334

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 1, 2023. The complaint is directed against GENERAL LOGISTICS SYSTEMS SPAIN, S.A. with NIF A61441523 (hereinafter, GLS).

Through the aforementioned document, the complainant states that they were the intended recipient of a package whose delivery management corresponded to GLS. They indicate that on August 1, 2023, they received an email stating that their package was going to be delivered by the transport company GLS.

They note that on that day, despite not being at home due to work circumstances, they received an email at 16:00 from GLS stating that it had already been delivered to their home address. This email lists their name as the signer of the package receipt along with an anonymized ID number that differs from their own.

They conclude by indicating that the package was delivered to a third party, which contains certain personal data, without their consent.

For evidentiary purposes, the notification includes the delivery message of the package received by email, which contains: the confirmation of receipt, the recipient's details, and the destination details.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 02/10/2023 as evidenced by the acknowledgment of receipt in the file.

On 02/11/2023, this authority received a response letter from GLS indicating, in summary, the statements that are presented below.

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Firstly, GLS states that it is firmly committed to complying with data protection regulations and, therefore, has implemented various policies and procedures aimed at ensuring the proper handling of personal data, which are regularly reviewed in light of regulatory changes and guidelines from the AEPD.

Regarding the specific complaint presented, it states the following:

- That GLS received an order from its client, SHEIN, to send a package to the complainant, delegating the delivery to its collaborator ENVIPAQ.
- That, after receiving communication from the complainant, GLS conducted an immediate investigation both internally and with ENVIPAQ. It was found that, although the geolocation of the courier showed that they were at the correct address, a non-existent ID number was recorded, indicating a false delivery.
- That, consequently, the responsible courier no longer works for ENVIPAQ, reflecting the seriousness with which GLS and its collaborators address such incidents.

Furthermore, GLS states that, in compliance with the data minimization principle of Article 5.1 c) of the GDPR, they only include the essential personal data for delivery on the shipping labels: name,

surname, and address of the recipient. To evidence this circumstance, they attach a digital copy of the label containing the mentioned data.

In any case, GLS considers the incorrect delivery to be a serious breach of service by ENVIPAQ, which is regarded as a data processor. For this purpose, they present the contract signed with ENVIPAQ, which included as Annex VIII the Data Processing Agreement. This contract establishes the responsibilities of ENVIPAQ in the processing of personal data on behalf of GLS, ensuring that appropriate technical and organizational measures are taken to protect personal data during the delivery process.

Consequently, upon confirming that the package was not delivered correctly, an audit file was initiated, and ENVIPAQ was penalized according to its internal procedures. A communication of the penalty to the collaborating company is attached to the aforementioned letter as evidence of these facts.

On the other hand, GLS states that, in order to ensure compliance with the regulations, it has been implementing several additional measures, such as:

- Updating the "Practical Guide for Couriers," which clearly highlights the prohibition of making deliveries to third parties without prior authorization from the recipient and the responsibility of collaborating entities in obtaining such authorization.
- Periodic communications: GLS sends periodic reminders to all collaborating entities to emphasize the importance of complying with current regulations and the resolutions of the AEPD. These communications are distributed through the intranet, email, and instant messaging applications.

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Reminders in the Delivery App: A reminder appears each time a delivery person accesses the Delivery App, stipulating the prohibition of deliveries to neighbors or doormen without express authorization.

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Training Material: GLS has included references to resolution PS-00280-2022 in the training material received by all new collaborators, and this training is reinforced with existing collaborators.

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Furthermore, GLS claims to have intensified its auditing system to ensure that all its collaborators comply with the established procedures for package delivery. They have warned collaborating companies that they reserve the right to take more severe corrective measures, including the termination of the contractual relationship in cases of non-compliance.

In conclusion, GLS asserts that it has designed and implemented sufficient measures to reduce and, as far as possible, prevent non-compliance in package deliveries by its collaborators. Despite these efforts, they acknowledge that errors occurred in the delivery of a significant volume of packages, but they assure that these incidents are minimal compared to the total number of daily deliveries made. GLS reiterates its commitment to the continuous improvement of its security and data protection procedures.

THIRD: On November 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR defines the "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, restriction, erasure or destruction."

In this case, it is evident that GLS engages in the recurrent processing of personal data in the exercise of its activity, including data belonging to the claimant necessary for making the delivery. Among the processing operations derived from its activity are the collection, recording, organization, storage, communication by transmission, and consultation of the personal data necessary to manage and carry out the delivery of the package. Furthermore, the data processing agreement and the communication of this data to its collaborator ENVIPAQ for delivery confirm the existence of such processing.

Additionally, the aforementioned article defines, on one hand, the "Data Controller" or "controller" as "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; if the Law of the Union or of the Member States determines." On the other hand, it defines the "Data Processor" or "processor" as "the natural or legal person, public authority, service, or other body which processes personal data on behalf of the data controller."

In this case, according to this definition, GLS is the data controller of the personal data in the exercise of its courier and parcel delivery activity, while the company ENVIPAQ is considered the data processor, as established in the data processing agreement provided during the transfer by the responding party itself.

III

Presumption of Innocence

In this case, a complaint is made due to the incorrect delivery of a package intended for the claimant, leading the claimant to believe that the confidentiality of their personal data may have been compromised. Specifically, the claimant has stated that data included on the shipping label, among others, name, surname, and postal data were exposed to a third party.

This authority understands that confidentiality will only be affected when access is granted to a third party to personal data that is not public or that was not previously known by that third party. Thus, the delivery of a package to a third party, when no additional data beyond what is strictly necessary for delivery (name and address) is included in the postal shipment, does not compromise the confidentiality of the recipient's personal data if personal data of the claimant that the third party did not previously know is not disclosed to the recipient of the shipment. In other words, if the unauthorized third party does not access...

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additional or sensitive information that was not previously known is not considered a breach of confidentiality as stipulated by the GDPR.

In conclusion, in the case at hand, the examination of the documents submitted in the transfer proceedings highlights the absence of evidence capable of justifying the initiation of sanctioning proceedings. It has not been established that personal data of the complainant, beyond their name and address, was exposed to unauthorized third parties. Furthermore, the fact that the package was delivered to an unauthorized third party does not automatically imply a breach of confidentiality if no additional data that the recipient did not previously know was disclosed to them. The email confirmation issued by the courier company, submitted along with the complaint, does not serve to substantiate such a circumstance.

Therefore, due to the lack of sufficient evidence demonstrating an effective breach of the principle of confidentiality, this Agency proceeds to archive the complaint. It has not been demonstrated that the personal data of the complainant, beyond their name and address necessary for delivery, has been exposed to unauthorized third parties in a manner that compromises their confidentiality and integrity. In this regard, it should be emphasized that in the context of sanctioning administrative proceedings, the guiding principles of criminal law apply, with some nuances but without exceptions, and the principle of presumption of innocence has full effect, which must govern without exceptions in the sanctioning framework and must be respected in the imposition of any sanctions.

The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

"a) (...) b) The presumption of non-existence of administrative responsibility until proven otherwise."

As specified by the Supreme Court in its Judgment of October 26, 1998, the validity of the principle of presumption of innocence "does not oppose that judicial conviction in a process can be formed based on circumstantial evidence, but for this evidence to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and the reasoning by which, based on the proven indications, it has been concluded that the accused committed the infringing conduct must be explicit, otherwise, neither the subsumption would be legally founded nor would there be a way to determine if the deductive process is...

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arbitrary, irrational, or absurd, that is to say, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating." Thus, it is necessary to distinguish true evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that "the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) The circumstantial evidence must stem from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human judgment, as set forth in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others)."

In short, the principle of the presumption of innocence prevents the imputation of an administrative infraction when no incriminating evidence has been obtained and verified that substantiates the facts motivating the imputation or the involvement of the alleged infringer in them.

In this case, as stated, there are no rational indications that would allow attributing to the claimed party the commission of the infractions of the personal data protection regulations reported, therefore, the right to the presumption of innocence that protects them cannot be considered undermined.

IV

Conclusion

Therefore, based on the points indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is understood without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been stated, by the Director of the Spanish Agency for

Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to GENERAL LOGISTICS SYSTEMS SPAIN, S.A. with NIF A61441523 and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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